

admitted. Plaintiffs cite to no authority to support such broad restrictions, nor do such restrictions appear “just.”

DRMC states it will accept a just monetary sanction, but no sanctions were requested in opposition. Therefore, the Court shall determine the amount of costs to be awarded to Plaintiffs upon noticed motion should they choose to file one.

Defendants Desert Regional Medical Center, Inc., and Tenet Healthcare Corporation’s Motion to Withdraw Judicially Deemed Admissions is GRANTED.

All Admissions Deemed Admitted in Plaintiff’s Request for Admissions, Set One, are WITHDRAWN.

Plaintiff may file a request for attorney’s fees on noticed motion for those fees associated with the reversal of the admissions.

Case Management Conference confirmed for 2.19.27.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509006	SHINN VS STELLANTIS, A MICHIGAN CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF MARK ALLEN SHINN BY STATE OF CALIFORNIA, ACTING BY AND THROUGH THE DEPARTMENT OF TRANSPORTATION

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

A special demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code, § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code, § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

A public entity is liable if the property was (1) in a dangerous condition at the time of the injury; (2) the dangerous condition caused the injury; (3) the dangerous condition

created a reasonably foreseeable risk of the kind of injury incurred; and (4) a negligent, wrongful or omission of a public entity employee created the dangerous condition **or** (5) the public entity had actual or constructive notice to have taken measures to protect against the dangerous condition. (Gov. C. §835.) A dangerous condition is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. C. §830(a).) Thus, public property is in a dangerous condition within the meaning of section 835 if it ‘is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself.’” (*Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1105.) There is no hard and fast rules but must depend on the facts of each case. (*Salas v. Dept. of Transp.* (2011) 198 Cal.App.4th 1058, 1069.)

Here, the complaint alleges that there were no barriers or warnings despite the curved roadway next to a steep embankment, that was hidden. (FAC ¶31.) That is the dangerous condition. Defendant’s assertion of factual specificity go towards discovery, not pleading specificity. There is sufficient notice to place Defendant on notice of the theory of the claim. The types of warnings or barriers can be determined via discovery.

Additionally, the complaint is not uncertain as to warrant sustaining a special demurrer for the inconsistency between the language of the ninth cause of action and the prayer. Regarding the request for punitive damages in the prayer, demurrers do not lie as to only parts of causes of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 (“A demurrer must dispose of an entire cause of action to be sustained.”) The proper motion would be to strike the punitive damages language. In the opposition, Plaintiff did indicate the request for punitive damages as to the ninth cause of action “is an obvious drafting error” and would remove it. (Oppo. Pg. 14, lines 17-18).

Defendant State of California’s General Demurrer to the First Amended Complaint
OVERRULED.

Defendant State of California’s Special Demurrer to the First Amended Complaint
OVERRULED.

Defendant State of California to file an Answer within 15 days of this order.

Plaintiff is directed to remove the punitive damages request in the prayer associated with the Ninth Cause of Action.

Case Management Conference continued to 12.17.26. Counsel ordered to file new and updated Case Management Statements 10 days in advance of hearing regarding status of Discovery/Discovery timeline and Alternative Dispute Resolution. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Counsel for Defendant High Country Tire needs to address if they also represent Big O Tires. According to the register, those parties have the same representation, however the Case Management Declaration filed on behalf of High Country only listed that party, no declaration was submitted on behalf of Big O Tires.